



Our Reference: E23-107719

Dr Rich McLean

barrandodger@gmail.com

cc: Sueellen Green, sueellengreen@hotmail.com

Dear Dr McLean

NOTICE TO DISCLOSER – DECISION NOT TO ALLOCATE – S 44(3) OF THE *PUBLIC INTEREST DISCLOSURE ACT 2013* – DISCLOSURE MADE ON 19 April 2023.

On 19 April 2023 the Department of Health and Aged Care received a disclosure from you.

The purpose of this letter is to notify you, in accordance with section 43(2) of the *Public Interest Disclosure Act 2013* (the Act), I have decided not to allocate this disclosure for handling by an agency for the reasons outlined below.

Reasons for decision

I consider that there is no reasonable basis on which the disclosure could be considered an "internal disclosure" as defined in section 26 the Act, because your disclosure was not made to an authorised internal recipient of the agency to which the conduct relates, or your manager or supervisor.

In making my decision not to allocate your disclosure I have taken in to consideration sections 26, 34 and 43 of the Act. Specifically in respect to an internal disclosure, I reference section 34 Item 1(a) and Item 1(b) of the Act that identifies the relevant recipients for internal disclosures. I have also considered section 43 (3)(a)(i) of the Act.

I am satisfied that from the information you have provided (including the additional information received on 5 May 2023), and in applying the previously mentioned sections of the Act, that the conduct disclosed does not relate to the Commonwealth Department Health and Aged Care.

Other courses of action that may be available to you

There may be other courses of action available to you either through the Agency that you worked for or under other laws of the Commonwealth in relation to the concerns raised in your disclosure. This includes referring your concerns to the Commonwealth Ombudsman under the *Ombudsman Act 1976*.

If you are not satisfied with the decision or the manner in which the Department of Health and Aged Care has managed your disclosure, you can contact the Commonwealth Ombudsman via their website at [Complaints | Commonwealth Ombudsman](#) to make a complaint.

Yours sincerely



Avi Rebera
Authorised Officer

9 May 2023